

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: August 18, 2025 TIME: 10:00 A.M.

*****NOTICE*****

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR197475	The John H. Borghi Trust	Click or scroll to line 1 for tentative ruling.
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Case Name: The John H. Borghi Trust

Case No.: 24PR197475

INTRODUCTION

On June 11, 2024, Petitioner Katerina Borghi (“Petitioner”) filed a petition for appointment of a successor trustee for the John H. Borghi Trust (“the trust”), the trust of Petitioner’s father, John Borghi (“Decedent”). The court granted the petition, appointing professional trustee Dusty White (“Trustee”).

On January 7, 2025, Trustee filed a petition to confirm her interpretation of the terms of the trust and instruct the trustee (“the petition”). Among other things, the petition explained that the trust instrument provides Decedent’s long-term partner, Dr. Catherine Athans with the right to live in Decedent’s home rent free for life on the conditions that she care for and maintain the property and either pay the insurance and property taxes on the property or reimburse the trustee for same. The petition asked the court to confirm Trustee’s interpretation of those conditions. Both Dr. Athans and Petitioner filed oppositions to the petition, however, Petitioner later filed a joinder in Trustee’s request to grant the petition.

During the course of litigation on the petition, counsel for Trustee filed a “Notice of Reporting Attorney Misconduct Under [Rules of Professional Conduct,] Rule 8.3 and Request for Corrective Action.”¹ The notice alleged misconduct on the part of counsel for Dr. Athans, Raymond Bekeris, Esq. Mr. Bekeris filed an opposition to that notice. Thereafter, Mr. Bekeris filed two separate Rule 8.3 notices regarding alleged misconduct by counsel for Petitioner, Craig Hansen, Esq.

Currently before the court is Petitioner’s motion for a protective order concerning her scheduled deposition. Dr. Athans has filed an opposition.

BACKGROUND

On June 18, 2025, Petitioner’s counsel, Steve Vondrak, Esq., sent an email to Mr. Bekeris proposing dates for Petitioner’s deposition. On July 1, 2025, Mr. Bekeris served an amended notice of deposition to Petitioner, noticing the deposition for August 20, 2025, one of the dates previously proposed. On July 14, 2025, after communications between Mr. Bekeris and Mr. Vondrak, Mr. Vondrak emailed Mr. Bekeris objecting to Mr. Bekeris personally deposing Petitioner. The letter proposed alternatives, such as a written deposition or having another attorney in Mr. Bekeris’s firm depose Petitioner. Petitioner filed the instant opposed motion for a protective order on July 17, 2025.

DISCUSSION

I. Legal Background

¹ The court will refer to Rules of Professional Conduct, rule 8.3 as “Rule 8.3.”

“Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order.” (Code Civ. Proc., § 2025.420, subd. (a).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420, subd. (b).)

II. Merits of the Motion

Petitioner moves for a protective order on the grounds that Mr. Bekeris has made sexist remarks and threatened to sue Petitioner personally. She requests the following: “The deposition of Katerina Borghi noticed for August 20, 2025, is quashed unless conducted via written interrogatories under C.C.P. § 2028.010; or by a neutral third party excluding Raymond John Bekeris; remotely via video with a discovery referee present to ensure decorum, or postponed under protective conditions until Mr. Bekeris [sic] personal threats, sexist remarks, and admissions of ethical violations are addressed by the Court.”

Dr. Athans opposes the motion, asserting that the motion fails to establish good cause because, she contends, allegations of misconduct on the part of an attorney are not a valid basis for a protective order. She also asserts that the deposition is necessary and Petitioner’s proposed alternatives are inadequate.

The court will address the latter argument first. Dr. Athans contends that the deposition is necessary to gather information regarding the underlying trust dispute. While Dr. Athans makes no more specific argument, it appears that Petitioner does not dispute that a deposition of Petitioner is proper as her counsel initially proposed dates for the deposition and, even in connection with the instant motion, she only objects to the deposition being taken or attended by Mr. Bekeris.

As to the argument that the motion fails to establish good cause and that an attorney’s conduct is not a proper basis for a protective order, the court disagrees. Dr. Athans contends that the allegations that Mr. Bekeris made sexist comments and that he threatened to sue Petitioner are based on subjective interpretations of his statements and therefore, they are insufficient to justify the relief sought. As mentioned above, “[t]he court, for good cause shown, *may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.*” (Code Civ. Proc., § 2025.420, subd. (b), *italics added.*) The court notes that the relief requested is well within the types of relief specifically enumerated by statute and, in any event, the court may make “any order” necessary to protect the aggrieved party upon a showing of good cause. The type of protective order the court may grant “may include, but is not limited to, one or more of the following directions: (1) That the deposition not be taken at all. (2) That the deposition be taken at a different time. . . . (5) That the deposition be taken only on certain specified terms and conditions. (6) That the deponent’s testimony be taken by written, instead of oral, examination. (7) That the method of discovery be interrogatories to a party instead of an oral deposition.” (Code Civ. Proc., § 2025.420, subd. (b).)

As to the good cause showing, in support of the motion, Petitioner has provided the declaration of her counsel evidencing emails sent by Mr. Bekeris. The court notes that, in an email dated July 14, 2025, Mr. Bekeris acknowledged his statements regarding suing Petitioner and indicated that he overreacted. (See Declaration of Attorney Steve Vondrak in Support of Motion for Protective Order (“Vondrak Decl.”), Ex. N.) Thus, although Dr. Athans contends that Mr. Vondrak is subjectively misinterpreting Mr. Bekeris’s statements, it appears to the court that there is a sufficient basis to conclude that statements were made that can be interpreted as a threat to sue Petitioner. Additionally, Petitioner has provided the court with emails in which Mr. Bekeris referred to “female attorneys.” The court makes no finding at this time as to Mr. Bekeris’s intent behind such statements, however, such comments may reasonably be interpreted as sensitive. The court also notes that Trustee’s counsel has filed a Rule 8.3 notice regarding similar statements he contends were made by Mr. Bekeris. Under these circumstances where the court has been asked to take action regarding what has been termed misconduct by Mr. Bekeris, the court finds that the relief requested in the motion for protective order is justified. The court will GRANT the motion and quash the deposition subpoena. However, the court will allow Dr. Athans to serve a new subpoena after the Rule 8.3 notices have been addressed.

The court finds that such a procedure is reasonable under the circumstances as two of the requested possible outcomes of the Rule 8.3 notices are that the court issue an order to show cause regarding Mr. Bekeris’s continued participation in the proceedings and that the court find that Mr. Bekeris is disqualified from representing Dr. Athans. (See, e.g., *Kennedy v. Eldridge* (2011) 201 Cal.App.4th 1197, 1205 [“disqualification may be considered where there exists a genuine likelihood that the status or misconduct of the attorney in question will affect the outcome of the proceedings before the court. . .”], internal quotation marks and citation omitted; *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 471 [same]; *Doe v. Superior Court* (2019) 36 Cal.App.5th 199, 205 [suggesting that disqualification may be based on violation of Rules of Professional Conduct, rule 4.2].) While the court makes no ruling on whether misconduct has occurred at this time, the Rule 8.3 notices have the possibility of rendering Petitioner’s requests moot. Accordingly, the court finds it reasonable that the deposition subpoena be quashed and for Dr. Athans or her counsel to serve a new deposition subpoena once the Rule 8.3 proceedings have concluded. If Mr. Bekeris continues to serve as counsel for Dr. Athans, the court would consider anew Petitioner’s proposed alternative measures for taking the deposition if they are raised again at that time.

Petitioner requests sanctions in the amount of \$7,060.00 under Code of Civil Procedure section 2025.420, subdivision (h), which provides, “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Dr. Athans argues that sanctions are unwarranted because her counsel acted in good faith throughout the discovery process. But, Petitioner has provided evidence that Mr. Bekeris initially agreed to postpone the deposition until Petitioner was “comfortable” but that he later rescinded that offer. (See Vondrak Decl., Exs. N, P.) Specifically, Mr. Bekeris stated, “Mr. Vondrak for Katerina Borghi: Surely you understood when I agreed to delay your client’s deposition that it was conditional on the Trustee doing the same on the trial or the evidentiary hearing. I assumed Dusty White agreed to that knowing how cooperative and profession [sic]

Mr. Hansen has been, but I certainly would not say it was unprofessional to not say something. I can't imagine she would not delay the hearing but to be sure I am letting you know the situation." (*Id.*, Ex. P.) He later stated, "Mr. Vondrak: Without Dusty White's cooperation this Deposition will go forward unless there is a Court Order putting it on hold." (*Id.*, Ex. P.) The court is not entirely clear which hearing this is referring to,² but, Mr. Vondrak, as counsel for Petitioner and not for Trustee, cannot be expected to make any representations regarding or exert any control over the actions of the Trustee.

The court finds that sanctions are warranted due to failure to meet and confer in good faith as to the postponing of the deposition and the proposed alternatives to an in person deposition conducted by Mr. Bekeris. The amount of sanctions requested consists of 11 hours spent in preparing the motion, three hours anticipated to be spent in drafting a reply, and a \$60 "anticipated" filing fee. Petitioner did not file an opposition and it is not clear whether the filing fee was anticipated in connection with the motion or the reply. Accordingly, the court declines to order sanctions for those anticipated amounts. The court will award sanctions in the amount of \$5,500 (11 hours at a rate of \$500 per hour) against Mr. Bekeris.

Finally, the court notes that, on July 28, 2025, Mr. Vondrak filed a notice that he accidentally engaged in communications with Mr. Bekeris's client. On July 29, 2025, Mr. Bekeris filed a response to that notice. Both of these documents have a hearing date listed for August 18, 2025, the same date as the hearing on the instant motion. But, that hearing date has not been reserved for that matter. Accordingly, the court declines to address those filings on August 18, 2025.

CONCLUSION

Petitioner's motion for protective order is GRANTED. The deposition subpoena is quashed, however, Dr. Athans or her counsel may serve a new subpoena after the Rule 8.3 proceedings have concluded. If Mr. Bekeris continues to serve as counsel for Dr. Athans, the court would consider anew Petitioner's proposed alternative measures for taking the deposition if they are raised again at that time. Mr. Bekeris is ordered to pay \$5,500 to Petitioner's counsel. The court declines to address the July 28, 2025 filing by Mr. Vondrak and the July 29, 2025 filing by Mr. Bekeris, described above, at this time.

² The court notes that there is a hearing scheduled on Trustee's petition for order authorizing sale of real property for August 25, 2025 and this may be what counsel are referring to but the emails do not explicitly mention the hearing date or the type of hearing involved.